

**STATE OF VERMONT
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In Re:	)	
Giita Clark	)	Docket No. MH02-1298
License No. 68-0175	)	

SPECIFICATION OF CHARGES, STIPULATION AND CONSENT ORDER

SPECIFICATION OF CHARGES

1. The Vermont Board of Allied Mental Health Practitioners has jurisdiction to investigate and adjudicate complaints of unprofessional conduct pursuant to 26 V.S.A. §§ 3263 and 3271; 3 V.S.A. §§129 and 129a; the Office of Professional Regulation's and the Board's Administrative Rules.
2. Respondent Giita Clark, is a Mental Health Counselor holding license no. 68-0175, issued by the State of Vermont. By way of history, Respondent's Mental Health Counselor license has been extended.
3. Respondent is Psychologist-Master holding license no. 47-0600 issued by the State of Vermont. By way of history, Respondent's Psychologist license expired on or about January 31, 1998.
4. Respondent began treating "A", in a therapist-client relationship, during about 1995.
5. Between 1995 and continuing until about 1998, Respondent's role evolved from therapist to that of peer-mentor-advisor, however, Respondent was negligent in failing to clearly communicate to "A" the distinction between therapist and that of peer-mentor-advisor.

6. In a long series of interactions with "A" during this time, including electronic mail correspondence, Respondent inappropriately crossed several boundaries, including: electronic mail correspondence to "A" suggesting to "A" that Respondent had DID when in fact Respondent has not been diagnosed with post traumatic stress disorder and/or disassociative identity disorder; and moreover, using their discussions to focus on Respondent's own mental and/or emotional issues.
7. During the course of Respondent's interaction with "A", between 1995 and continuing into about 1998, her own mental emotional issues have at times interfered with her professional obligations to "A".
8. The State is prepared to prove that the Respondent acted unprofessionally and in violation of: 26 V.S.A. § 3271(14) [now 26 V.S.A. § 3271(6)] (entering into an additional relationship with a client, supervisee, research participant or student that might impair the mental health counselor's objectivity or otherwise interfere with the mental health counselor's professional obligations); and 26 V.S.A. § 3271(5) [now 3 V.S.A. § 129a(a)(3)] (failing to comply with the provisions of statutes or rules governing the practice of the profession). *THE NEW VERSION OF 26 V.S.A. § 3271(5) IS NOT IMPLICATED HEREIN.*
9. Wherefore, Respondent's license should be disciplined.

WHA
RRG

STIPULATION

NOW COME the State of Vermont, through its Attorney General William H. Sorrell, and Respondent Giita Clark, and stipulate and agree as follows:

1. The Vermont Board of Allied Mental Health Practitioners has jurisdiction to investigate and adjudicate complaints of unprofessional conduct pursuant to 26

V.S.A. §§ 3263 and 3271; 3 V.S.A. §§129 and 129a; the Office of Professional Regulation's and the Board's Administrative Rules.

2. Respondent Giita Clark, is a Mental Health Counselor holding license no. 68-0175, issued by the State of Vermont. By way of history, Respondent's Mental Health Counselor license has been extended.
3. Respondent is Psychologist-Master holding license no. 47-0600 issued by the State of Vermont. By way of history, Respondent's Psychologist license expired on or about January 31, 1998.
4. Respondent began treating "A", in a therapist-client relationship, during about 1995.
5. Between 1995 and continuing until about 1998, Respondent's role evolved from therapist to that of peer-mentor-advisor, however, Respondent was negligent in failing to clearly communicate to "A" the distinction between therapist and that of peer-mentor-advisor.
6. In a long series of interactions with "A" during this time, including electronic mail correspondence, Respondent inappropriately crossed several boundaries, including: electronic mail correspondence to "A" suggesting to "A" that Respondent had DID when in fact Respondent has not been diagnosed with post traumatic stress disorder and/or disassociative identity disorder; and moreover, using their discussions to focus on Respondent's own mental and/or emotional issues.
7. Respondent admits the conclusions of unprofessional conduct as set forth herein and the entry of the Order set forth below.

8. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
9. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
10. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulation and Consent Order.
11. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
12. Respondent voluntarily waives her right to charges and a contested hearing before the Board.

ORDER

Based on the stipulation above it is **ORDERED AND ADJUDGED** as follows:

A. The Board makes findings that Respondent acted unprofessionally and in violation of: 26 V.S.A. § 3271(14) [now 26 V.S.A. § 3271(6)] (entering into an additional relationship with a client, supervisee, research participant or student that might impair the mental health counselor's objectivity or otherwise interfere with the mental health counselor's professional obligations); and 26 V.S.A. § 3271(5) [now 3 V.S.A. § 129a(a)(3)] (failing to comply with the provisions of statutes or rules governing the practice of the profession).

B. The Board of Allied Mental Health Practitioners: **SUSPENDS** Respondent's Mental Health Counselor license for a period of **14 days**, commencing

on the date this order is entered, during which time she is to present to the Board's designee at the Office of Professional Regulation, an independent evaluation report by a psychologist or mental health counselor (1. previously approved by the Board's O.P.R. designee, 2. with an unencumbered license in Vermont, and in all states s/he is so licensed, and 3. other than a current provider), verifying that Respondent is capable of returning to competent practice; **REPRIMANDS** the Respondent and thereafter; **CONDITIONS** Respondent's license to practice. The **CONDITIONS** on Respondent's license are as follows:

1. The Respondent shall maintain seeing her current treating mental health professional, not less than once per month, until the treating professional and the Board agree that such treatment is no longer necessary. This mental health professional shall file a report with the Board (or its designee) on a quarterly basis addressing Respondent's progress.
2. The Respondent shall engage in peer supervision with a psychologist or mental health counselor acceptable to the Board (or its designee) and one who is experienced in working with professionals and boundary issues. Peer supervision is to be given by someone other than a current provider. Such supervision shall include close monitoring of practice limitations as well as assisting the Respondent in developing skills and increasing self-knowledge regarding therapy practice and practice limitation and boundaries.

3. The supervisor's first role shall be to review Respondent's present case load and office arrangements. The supervisor shall be provided a copy of the "independent evaluation" report, as above, and a copy of this Stipulation and Consent Order. The supervisor shall acknowledge receipt thereof to the Board (or its designee). The supervisor shall meet with the Board (or its designee) at the beginning of this supervision, or as soon as possible thereafter, so that the panel may be assured that the supervisor is fully acquainted with the facts and issues in this case.
4. If the supervisor thinks that there are changes that need to be made, to either improve clinical treatment or to avoid unprofessional conduct, the Respondent shall take the appropriate responsible steps in accordance with the suggestions and with the approval of the supervisor. All new patients' files will be presented to the supervisor to assess if they are appropriate to the Respondent's practice. If deemed inappropriate to that practice by the supervisor then responsible steps shall be taken for their transfer to another treatment professional.
5. Additionally, Respondent shall develop with this supervisor an assessment and plan to address Respondent's boundary issues and submit this plan to the Board (or its designee) for approval.

This plan shall address the issues identified in the Stipulation and Consent Order .

6. Respondent shall meet with the supervisor periodically, and not less than once per month, throughout the period of this Stipulation and Consent Order. Supervision will involve not just review of specific clinical case issues but also and especially address boundary issues. The supervisor shall file a report with the Board (or its designee) on a quarterly basis addressing Respondent's progress and adherence to good practice standards.
7. Such supervision shall have commenced within fourteen (14) days after the date of entry of this order, or within thirty (30) days thereafter, for a period of three (3) years but may terminate after two years upon petition by the Respondent and if the supervisor and the Board agree that such supervision is no longer necessary.
8. The Board (or its designee) shall have full access to information related to the matters set forth above from any supervising psychologist or mental health counselor. The Respondent shall give appropriate releases to the Board (or its designee) by upon request. Failure to do so shall be a violation of this order.
9. Respondent shall bear all cost associated with compliance with this order.

10. By signing this Stipulation and Consent Agreement, Respondent agrees to allow the Board (or its designee), to obtain information, either orally or in writing, from her supervising professional at any time during the period this Stipulation and Consent Order is in effect.
11. **These conditions shall commence fourteen days from the date of entry of this order, and shall continue for a minimum period of three (3) years** but may terminate after two years upon petition by the Respondent and if the supervisor and the Board agree that such supervision is no longer necessary. At the conclusion of that period Respondent shall be reinstated without condition so long as she has demonstrated full compliance with the terms of this Stipulation and Consent Order and all provisions of law.

C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a)(7).

D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

STATE OF VERMONT

WILLIAM H. SORRELL
ATTORNEY GENERAL

Office of the
ATTORNEY
GENERAL
109 State Street
Montpelier, VT
05609

Dated: 7/22/99

by: William H. Ahlers
William H. Ahlers
Special Assistant Attorney General

GIITA CLARK
RESPONDENT

Dated: 7/15/99

by: *Giita Clark*
Giita Clark

RICHARD R. GOLDSBOROUGH

Approved As to Form:

Dated: 7/15/99

by: *Richard R. Goldsborough*
Richard R. Goldsborough, Esq.
Perry, Schmucker & Goldsborough
Attorney for Respondent

APPROVED AND SO ORDERED:

BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 8/12/99

by: *Kevin P. Moore*
Chairperson

Date of entry: 8-13-99